



POLICE DEPARTMENT

October 1, 2024

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In the Matter of the Charges and Specifications
- against -

Detective John O'Hagan
Tax Registry No. 957913
Emergency Service Squad 3

:
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:
:
Case No.
2022-27346

Detective Brian Fechtmann
Tax Registry No. 954800
Emergency Service Squad 3

:
:
:
:
Case No.
2022-27347

----- X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondents:

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To:
HONORABLE THOMAS G. DONLON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2022-27346

1. Police Officer John O'Hagan¹, on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03 and on duty, in the vicinity § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he damaged § 87(2)(b) property, by drilling a hole into his bedroom door, without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Police Officer John O'Hagan, on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03 and on duty, in the vicinity § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) bedroom without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Police Officer John O'Hagan, on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03 and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) bedroom without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40

INVESTIGATIVE
ENCOUNTERS

Disciplinary Case No. 2022-27347

1. Police Officer Brian Fechtman², on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03 and on duty, in the vicinity § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he damaged § 87(2)(b) property by drilling a hole into his bedroom door, without sufficient legal authority.
2. Police Officer Brian Fechtman, on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03 and on duty, in the vicinity § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) bedroom without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 212-11, Page 8, Paragraph 40

INVESTIGATIVE
ENCOUNTERS

¹ Respondent O'Hagan was promoted to Detective in February 2024.

² Respondent Fechtman was promoted to Detective in April 2022.

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on August 5, 2024. Respondents, through their counsel, entered pleas of Not Guilty to the charged misconduct. The Civilian Complainant Review Board (hereinafter "CCRB") called § 87(2)(b) to testify and entered 911 audio and video recordings of the incident into evidence. Respondents each testified on their own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent O'Hagan and Respondent Fechtmann Not Guilty of all charges and specifications.

ANALYSIS

This case arises from a request made by a 45 Precinct sergeant for the Emergency Services Unit ("ESU") to assist because § 87(2)(b) had barricaded himself in his bedroom. Respondents, both working on ESU Truck 3, responded to the location, § 87(2)(b) in the Bronx.

The following is a summary of facts that are not in dispute. On July 18, 2021, § 87(2)(b) was renting a bedroom and sharing the common areas of an apartment inside of a private house. § 87(2)(b) called 911 and alleged that she had been sexually and physically assaulted by § 87(2)(b) (Tr. 15, 22, 45) At approximately 1300 hours, Respondents arrived at the dwelling and communicated with other officers on the scene, who informed them that they had spoken to § 87(2)(b) § 87(2)(b) and she was alleging that he struck her on the right side of her face. (CCRB Ex. 4 at 01:05) Respondents went to § 87(2)(b) bedroom, which was located down a short, narrow corridor of the apartment. The bedroom door had neither an external doorknob nor a peephole. (Tr. 60, 97, 112-13) Respondent O'Hagan was immediately in front of

the door holding a ballistic shield, with Respondent Fechtmann standing behind him, and another police officer in back of Respondent Fechtmann. (Tr. 72; CCRB Ex. 5, Respondent Fechtmann body-worn camera footage, at 00:00-00:18)

Respondent O' Hagan knocked on the door, identified himself and his co-workers as police officers, and attempted to convince § 87(2)(b) to come out of his room voluntarily. § 87(2)(b) did not immediately open the door and instead called 911, telling the operator that there were people at his door claiming to be police officers. He repeatedly asked for an NYPD supervisor to come to his home to verify whether the individuals knocking on his door were, in fact, police. (Tr. 22-23) Approximately 30-45 minutes after Respondents arrived, Respondent Fechtmann cut a hole in the door. (Tr. 41, 64, 71, 115; CCRB Ex. 1, cell phone footage of door) Shortly thereafter, § 87(2)(b) covered the hole with paper. (Tr. 41) Eventually, § 87(2)(b) opened the door and Respondent O'Hagan, followed by Respondent Fechtmann entered the room, pushing § 87(2)(b) onto the bed and then handcuffing him. After getting § 87(2)(b) shoes and a shirt, he was escorted out of the room by a third officer. (Tr. 42, 65-66, 74, 120; see CCRB Exs. 4, 5)

CCRB Exhibit 5, Respondent Fechtmann's body-worn camera footage

The following is a summary of a portion of the body-worn camera footage captured by Respondent Fechtmann:

- 01:54-01:57: Respondent Fechtmann partially closes the breached bedroom door to inspect the area behind that door.
- 01:58-02:37: Other police officers remove § 87(2)(b) from his bedroom.
- 02:38-03:02: Respondent Fechtmann lifts § 87(2)(b) mattress and Respondent O'Hagan inspects the space between the mattress and the bed frame. Respondents then lift the mattress and bedframe in tandem and inspect the space underneath the bed frame.

03:07-03:56: Respondents inspect the sole closet in the bedroom, manipulating the coats hanging in the closet to look behind them, and using a flashlight to illuminate the floor.

04:02-04:08: Respondent O'Hagan inspects the area furthest from the bedroom door that is obstructed by § 87(2)(b) bed when observed from the room's entrance.

04:19-04:33: Respondents remove approximately half of the clothes and bags from the largest pile of clothes in the room.

§ 87(2)(b) took the stand and recalled that, on the date in question, he spent the morning in his room by himself, attending a religious service via Zoom. After the virtual gathering concluded, § 87(2)(b) recalled resting until, "1:15, 1:20 there was extremely loud banging on the door as if someone was going to break into the door." (Tr. 21) He detailed going to the door, which remained closed, and asking who was knocking on the door and why were they there. § 87(2)(b)

§ 87(2)(b) stated that the people at the door told him they were police officers. He contended that they did not explain their purpose, nor did they provide their names or shield numbers. § 87(2)(b)

§ 87(2)(b) called 911 to determine if the men at his door were, in fact, police officers. (Tr. 21-22) He contacted 911 a total of four times during the approximately 45 minutes Respondents were at his door. He described Respondents' demeanor as getting "angrier" as he continued to refuse to open the door. § 87(2)(b) acknowledged that the operator he spoke to during the fourth call confirmed that Respondents were police officers. § 87(2)(b) asserted that he asked her to remain on the line to act as a witness as he opened the door. (Tr. 24-28)

§ 87(2)(b) recalled announcing, "I am opening the door, and I have the 911 operator on the line. She knows I'm opening the door, she told me to open the door... I'm not armed, I'm Jehovah's Witness, I'm not exactly dressed." (Tr. 42) He explained that the door opened inwards, rather than out into the hall, and that when he opened it, he remained completely inside

of the room. § 87(2)(b) recalled, "I opened the door, nice and slowly . . . [then] Boom. [Respondents] came in." § 87(2)(b) described being "bum-rushed" by "three big guys," who put him facedown while "twisting" his arms behind his back. He acknowledged that he was eventually pulled to his feet and walked out of the room. § 87(2)(b) denied giving Respondents consent to enter his room. During cross examination, § 87(2)(b) conceded that after being removed from his room he was arrested for Assault and Forcible Touching, amongst other charges. According to § 87(2)(b) he ultimately pled guilty to a lesser violation. (Tr. 20-21, 28-31, 44-45)

Respondent O'Hagan took the stand and testified that he and Respondent Fechtmann, along with a third police officer were called to § 87(2)(b) apartment by a sergeant from the 45 Precinct who was attempting to arrest him for allegedly assaulting and groping § 87(2)(b). The sergeant called for ESU because § 87(2)(b) had barricaded himself in his room. (Tr. 59)

Respondent O'Hagan recounted that § 87(2)(b) bedroom was located in a narrow hallway, and that the door had no knob on it. Respondent O'Hagan explained that ESU procedure when dealing with an individual barricaded in a locked room is to, "tie off on the door knob... [s]o we can control the door and slow it down to [take] the necessary steps to gain voluntary compliance." (Tr. 56) Since they could not control the door that way, Respondent O'Hagan described Respondent Fechtmann attempting to secure it with a tool called a "Rabbit." When that failed, Respondent Fechtmann used a sawzall to cut a small "inspection" hole in the door in order to "gain visual on the individual inside to make sure that they don't have any weapons.... [and] make sure that there's no additional perpetrator, EDPs or even victims inside." (Tr. 57) Respondent O'Hagan contended that once the hole was cut, he attempted to speak with

§ 87(2)(b) and again identified his team as police officers; his goal was to convince § 87(2)(b) to exit the room voluntarily. Respondent O'Hagan recalled that initially he could see § 87(2)(b) through the hole, but could not see the whole room. Respondent O'Hagan admitted that he did not see any weapons. Shortly after the inspection hole was created, § 87(2)(b) covered it with paper. (Tr. 63-65, 82-83)

Respondent O'Hagan estimated that approximately thirty five to forty minutes after his team arrived, § 87(2)(b) suddenly opened the door. He recalled his thought process after § 87(2)(b) unexpectedly materialized: "At that point, I couldn't risk the safety of myself, my teammates and even the safety of himself. I made the decision to go in to just put him in handcuffs because I don't know. I didn't know what he could've had behind that door... We were sitting ducks... So the decision was made when that door was opening unexpectedly, surprisingly, to go in and place him in custody." (Tr. 66)

Respondent O'Hagan denied hearing § 87(2)(b) tell the 911 operator that he is a Jehovah's Witness, and that his faith prohibits him from using weapons. Respondent O'Hagan opined that even if he had heard that information, he would not have been able to rely on it, explaining, "[w]hen individuals don't want to open the door and if they already exhibited violence, we can't take their word for that." (Tr. 58) In addition, Respondent O'Hagan further denied that § 87(2)(b) announced his intention to open the door. (Tr. 65-66) During cross-examination, Respondent O'Hagan conceded that he did not possess a warrant to enter § 87(2)(b) room, nor did he obtain consent to do so. (Tr. 91)

Respondent O'Hagan explained that after § 87(2)(b) had been removed from the room, he and Respondent Fechtman conducted "safety sweeps" in areas such as, "closets, large areas, under the bed, big piles of clothes" where a person could be hiding. (Tr. 67) He asserted that the

sweep is not a search for contraband or weapons, noting "[It is ESU protocol to] [m]ake sure that location is totally safe in the event that patrol or detective personnel need to go in to conduct further investigation." (Tr. 94-95, 99)

Respondent Fechtmann took the stand and testified that Respondent O'Hagan was the first officer at § 87(2)(b) door, and he was the second. He explained that in addition to a sub-machine gun, he was responsible for several tools, including the "Rabbit", a hydraulic spreader, and the sawzall, a sharp edged tool. Respondent Fechtmann recounted attempting to use the "Rabbit" to push the door up in order to "wedge" it in the doorframe, to prevent it from opening. However, when he tried to do this, the door began to buckle. Respondent Fechtmann recalled that Respondent O'Hagan was contemporaneously attempting to communicate with § 87(2)(b) through the closed door. Respondent Fechtmann stated that after approximately 30 minutes, they decided to cut a hole in the door in an attempt to see § 87(2)(b). He explained that the flimsiness of the door combined with their the inability to secure it was cause for concern, offering, "We didn't know what might come from the other side of that door that was possibly there that could possibly hurt us." (Tr. 113-16)

According to Respondent Fechtmann, not long after the hole had been made, § 87(2)(b) covered it with paper. This made him anxious because, "[m]aybe there's a reason he's trying to conceal himself or conceal something inside the room." Respondent Fechtmann recalled that as Respondents were waiting for their supervisor to arrive, § 87(2)(b) unexpectedly opened the door. Respondent O'Hagan entered the room, followed by Respondent Fechtmann, who explained, "At that point it was an officer safety issue. Because it was a split second of now this man is in front of us, we have very little protection." (Tr. 117-18, 120-21)

Respondent Fechtmann testified that after § 87(2)(b) had been subdued and placed into handcuffs, he activated his body-worn camera. Respondent Fechtmann stated that his team got § 87(2)(b) shoes and a shirt, and the patrol officers assumed custody of him. Respondent Fechtmann and Respondent O'Hagan then conducted a "safety sweep" which consisted of "checking places where a person [could] reasonably hide" before leaving the apartment. (Tr. 121-22)

Disciplinary Case 2022-27346: Respondent O'Hagan- Specification One
Disciplinary Case 2022-27347: Respondent Fechtmann- - Specification One

Property Damage

Respondent O'Hagan and Respondent Fechtmann each stand charged with damaging a door belonging to § 87(2)(b) without sufficient legal authority by cutting a hole in it. Respondents do not deny that they made a decision to make a hole in the door, and that Respondent Fechtmann used a tool to do so. The question for the tribunal is whether Respondents' actions were reasonable given the surrounding circumstances. I find that they were.

Respondents are highly trained members of a specialized unit whose mission includes dealing with barricaded individuals and door breaches. They were summoned to § 87(2)(b) home by other officers who had probable cause to arrest him for assaulting and groping his § 87(2)(b) § 87(2)(b). It is undisputed that the door to § 87(2)(b) room had no doorknob or peephole and that he refused to open the door when Respondents knocked on it.

CCRB contends that Respondents erred in puncturing § 87(2)(b) door. They argue that the property damage was unnecessary because § 87(2)(b) did not pose a threat to himself or Respondents and emphasize that § 87(2)(b) had informed them that he was weaponless and a member of a nonviolent religion. In addition, CCRB asserts that Respondents did not have the

authority to make the decision to puncture the door and they should have waited for a supervisor before doing so. (Tr. 42,147)

In contrast, both Respondents testified credibly about the extensive training they received in order to work in ESU. They each carefully explained the protocols regarding a barricaded perpetrator, in particular the reasons those procedures exist. At trial, Respondents further explained that their actions were in keeping with NYPD procedure and ESU protocol, for barricaded individuals, which permits them to make a small "inspection" hole in a door in order to determine how many people are behind the door and if they have weapons.

In the instant case, Respondents were unable to gain control of § 87(2)(b) door using the ESU procedure of tying off the door knob. Additionally, they could not prevent the door from opening by wedging it because of its poor structural integrity. (Tr. 57, 61, 113-14) § 87(2)(b) who was accused of committing several acts of violence against his § 87(2)(b) § 87(2)(b) was refusing to communicate with, or open the door for, Respondents. In response, Respondents cut a small hole in the door in order to make a visual inspection of § 87(2)(b) and his surroundings. CCRB Exhibit 1 is a cell-phone video recorded by § 87(2)(b) of the opening made in his door. The tribunal was therefore able to view the damage, which was not excessive. The size and location of the hole were consistent with Respondent O'Hagan's testimony that its purpose was to gain a visual of the individual to observe if they were armed. (Tr. 57)

Accordingly, I find that in light of the surrounding circumstances Respondents' actions were reasonable, measured, and intended to ensure the safety of all parties. Based upon the foregoing, I find Respondents O'Hagan and Fechtmann Not Guilty of Specification 1.

Disciplinary Case 2022-27346: Respondent O'Hagan- Specification Two

Unlawful Entry

Respondent O'Hagan stands charged with entering § 87(2)(b) bedroom, without sufficient legal authority to do so. In the instant matter, the parties agree that § 87(2)(b) did not give consent to enter his room. It is also undisputed that probable cause existed to arrest § 87(2)(b) for Assault and Forcible Touching. Therefore, the question before the tribunal is whether circumstances existed which permitted Respondent O'Hagan to enter § 87(2)(b) residence. I find that the particular circumstances of this incident justified the warrantless entry.

The Supreme Court in *U.S. v. Allen* held that, "at a minimum, law enforcement officers violate *Payton* when, in the absence of exigent circumstances or consent, they physically enter protected premises to effect a warrantless search or arrest." 813 F.3d 76 (2016), citing *U.S. v. Stokes*, 733 F.3d 438, 444 (2d. Cir. 2013). "In determining whether exigent circumstances exist, the core question is whether the facts, as they appeared at the moment of entry, would lead a reasonable, experienced officer, to believe that there was an urgent need to render aid or take action. This test is an objective one that turns on the totality of the circumstances confronting law enforcement agents in the particular case." *U.S. v. Simmons*, 661 F.3d 151, 157 (2011).

Courts have set forth a number of factors to consider when determining whether exigent circumstances exist: whether police have probable cause to believe the suspect committed the crime; the gravity or violent nature of the offense with which the suspect is to be charged; whether the suspect is reasonably believed to be armed; whether police have reason to fear that the suspect is about to commit another violent crime; whether there is a reasonable inference that the suspect poses a danger to others at the location; whether police have reason to believe that the suspect is in the premises being entered; the likelihood that the suspect will escape if not

swiftly apprehended; and the peaceful circumstances of the entry, including the time of day that police enter the premises.³ See *People v. Paulino*, 131 A.D.3d 65 (2015), citing *People v. McBride*, 14 N.Y.3d 440, 446 (2010); *People v. Lexune*, 59 Misc. 3d 1224(A) (Sup. Ct., Bronx County, 2018), citing *People v. Mason*, 248 A.D.2d 751 (3d Dept. 1998)

In the instant matter, Respondent O'Hagan was aware that § 87(2)(b) was present in his room. It is undisputed that Respondent O'Hagan possessed probable cause to arrest § 87(2)(b) for Assault and Forcible Touching, both of which are offenses that are violent in nature. Indeed, the victim of the assault § 87(2)(b) and when the initial responding officers first saw her, she appeared to have been injured. Furthermore, the victim did not stay inside the residence with § 87(2)(b) but was outside sitting on the steps when police arrived. These factors would lead a reasonable police officer to conclude that waiting to obtain a warrant before arresting § 87(2)(b) would likely "pose a danger" to the victim. (CCRB Ex.4, body-worn camera footage at 02:34-02:46)

In addition, Respondents cited numerous additional safety concerns that support the entry as reasonable. When asked during cross-examination whether he had information that § 87(2)(b) had weapons in his room, Respondent O'Hagan was forthcoming when he acknowledged that he did not. (Tr. 79, 83) However, considering the combination of the nature of the crimes § 87(2)(b) was accused of and his covering of the "inspection" hole, it was reasonable for Respondent O'Hagan to believe that he could be armed. In addition, Respondent O'Hagan described being unable to see § 87(2)(b) hands when he opened the door. He explained, "So the door is opened unexpectedly in front of me without any warning. At that point, I couldn't risk

³ It should be noted that the aforementioned factors are "illustrative," not exhaustive, and the presence or absence of any one factor is not dispositive. See *Paulino*, 131 A.D.3d at 69; *People v. Williams*, 181 A.D.2d 474 (1st Dept. 1992)

the safety of myself, my teammates and even the safety of himself. I made the decision to go in to just put him in handcuffs because I don't know. I didn't know what he could've had behind that door. With that shield that we have, it is a very small window that we can see through." (Tr. 66)

When viewed altogether, the allegation that § 87(2)(b) had committed violent acts against his § 87(2)(b) § 87(2)(b) his behavior throughout this encounter, and most compellingly, that in order to ensure the safety of § 87(2)(b) § 87(2)(b) he needed to be removed from the location expeditiously, it was reasonable for Respondent O'Hagan to believe that he urgently needed to enter § 87(2)(b) residence to arrest him. Leaving the apartment without making this arrest would potentially leave the victim in harm's way and susceptible to further injury. The entry and arrest are therefore consistent with guidance given to officers in Legal Bureau Bulletin Vol. 44, No. 2 (Jan. 2014), which emphasizes that officers should consider whether "any delay in obtaining a warrant would pose a danger to the arresting officers or the community." See *People v. Bero*, 139 A.D.2d 581 (2d Dept. 1988) For the forgoing reasons, I find Respondent O'Hagan Not Guilty of Specification 2.

Disciplinary Case 2022-27346: Respondent O'Hagan- Specification Three
Disciplinary Case 2022-27347: Respondent Fechtman- Specification Two

Unlawful Search

Respondents stand charged with unlawfully searching § 87(2)(b) room after he was arrested and removed from it. It is undisputed that Respondents pulled up § 87(2)(b) mattress, moved some clothing in his closet and lifted some large piles of clothing before exiting the bedroom. § 87(2)(b) did not consent and Respondents did not possess a search warrant. CCRB argues that these actions constituted an improper search in violation of the 4th Amendment.

Respondents contend that these actions comprised a “safety sweep” to ensure that there no other people in the room. As discussed below, I agree with Respondents’ characterization, and find that the totality of the circumstances justified their actions.

In *Maryland v. Buie*, the Supreme Court defined a “protective sweep” as, “a quick and limited search of premises, incident to an arrest and conducted to protect the safety of police officers or others. It is narrowly confined to a cursory visual inspection of those places in which a person might be hiding.” 494 U.S. 325, 327 (1990) The sweep is allowed when a police officer possesses, “articulable facts which, taken together with the rational inferences from those facts, would warrant a reasonably prudent officer in believing that the area to be swept harbors an individual posing a danger to those on the arrest scene.” (*Id.*)

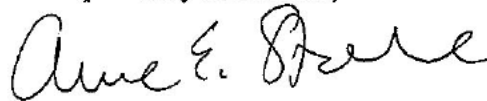
Respondent O’Hagan and Respondent Fechtmann each testified that after § 87(2)(b) had been arrested and handed over to the patrol officers who were on the scene, they conducted a “safety sweep” of the room before they left. Respondent O’Hagan testified that the purpose of the sweep was to look for another person, not to search for contraband. Respondent Fechtmann echoed those statements, adding that it is ESU protocol “to check closets, floor, wall to wall, piles of clothing under bed, under mattresses, behind -- furniture” before leaving a premises (Tr. 92-95, 121-22) I credit Respondents’ descriptions, which were corroborated by Respondent Fechtmann’s body-worn camera footage. (CCRB Ex. 5 at 02:38-04:33)

CCRB asserted that neither Respondent articulated nor possessed “a reasonable belief based on specific and articulable facts which taken together with the rational inferences of those facts, reasonably warrant the officers in believing that the area swept harbored an individual posing a danger and officers or others.” (Tr. 158) In addition, counsel for CCRB argued that the length of time that Respondents were looking, almost two minutes, rendered Respondents’

actions a "prolonged" search as opposed to a quick sweep. I disagree; the evidence shows that Respondents followed the legal guidelines set forth for a protective sweep. Prior to entering the room, Respondents had limited visual contact with § 87(2)(b) in no small part due to his actions in covering the "inspection hole" they created. They possessed probable cause to arrest § 87(2)(b) for an assault which took place shortly before they arrived.

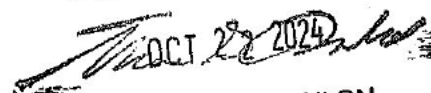
Under the circumstances, it was not unreasonable for Respondents to conduct a limited visual inspection of the areas in the room where a person could hide, in order to make sure that no one was concealed therein who could pose a danger to themselves or other officers who might enter the room after them. Both Respondents acted professionally throughout the encounter, in the even-handed manner the Department expects from highly trained officers assigned to ESU, who are called to handle exactly these types of potentially volatile situations. For the foregoing reasons I find Respondent O'Hagan Not Guilty of Specification 3 and Respondent Fechtman Not Guilty of Specification 2.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED



THOMAS G. DONLON
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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September 30, 2024

Honorable Thomas Dolan
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Detectives John O'Hagan & Brian Fechtmann
Disciplinary Case Nos. 2022-27346 & 2022-27347

Commissioner Dolan:

The above-referenced case was tried on August 5, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Anne E. Stone, dated September 19, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Detective John O'Hagan was charged with the following:

1. Police Officer John O'Hagan¹, on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03T and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he damaged § 87(2)(b) property, by drilling a hole into his bedroom door, without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1 – PROHIBITED CONDUCT

2. Police Officer John O'Hagan, on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03T and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) bedroom without sufficient legal authority.

¹ Respondent O'Hagan was promoted to Detective in February 2024.

A.G. 304-06, Page 1, Paragraph 1 – PROHIBITED CONDUCT

3. Police Officer John O'Hagan, on or about July 18, 2021, at approximately 1200 hours while assigned to ESS 03T and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) bedroom without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40 – INVESTIGATIVE ENCOUNTERS

The Court found Respondent O'Hagan not guilty of Specifications One (1), Two (2) and Three (3).

It is respectfully requested that you reject ADCT Stones's findings and find Respondent O'Hagan guilty of Specifications One (1), Two (2) and Three (3) and accept CCRB's recommended penalty of TWENTY (20) vacation days.

Respondent, Detective Brian Fechtmann was charged with the following:

1. Police Officer Brian Fechtmann², on or about July 18, 2021, at approximately 1200 hours, while assigned to ESS 03T and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he damaged § 87(2)(b) property, by drilling a hole into his bedroom door, without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1 – PROHIBITED CONDUCT

2. Police Officer Brian Fechtmann, on or about July 18, 2021, at approximately 1200 hours while assigned to ESS 03T and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) bedroom without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40 – INVESTIGATIVE ENCOUNTERS

The Court found Respondent Fechtmann not guilty of Specification One (1) and Specification Two (2).

It is respectfully requested that you reject ADCT Stone's findings and find the Respondent Fechtmann guilty of Specifications One (1) and Two (2) and accept CCRB's recommended penalty of TWENTY (20) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

The relevant evidence introduced at trial by CCRB were CCRB Exhibit 1, a video provided by the complaining witness, § 87(2)(b) showing the damage done to his bedroom door by the Respondents; Exhibit 2, the audio of § 87(2)(b) last call to 911; Exhibit 3, the transcript of

² Respondent Fechtmann was promoted to Detective in April 2022.

said 911 call; Exhibit 4, Police Officer Sean Hackeling's BWC footage; Exhibit 5, Respondent Fechtmann's BWC footage; and, Exhibit 6, the ESU2 report dated July 18, 2021. CCRB also presented § 87(2)(b) who testified in this matter.

§ 87(2)(b) testified that while he was arrested and charged in the herein matter with Assault in the Third Degree, Criminal Obstruction of Breathing, Menacing in the Third Degree and Harassment in the Third Degree, those charges were subsequently dismissed, and he only received a violation. (Transcript 21). § 87(2)(b) testified he is a Jehovah's Witness, and on the morning of the herein incident, he took part of religious services via a Zoom conference which ended approximately at 12:30 PM. He fell asleep afterwards only to be woken up approximately one-half hour later by extremely loud banging on the door to his bedroom, as if someone was going to break into the door. (Transcript 22). He stated that he tried to find out what was going on, and was informed by whomever was on the other side of the door that it was the police. § 87(2)(b) tried to get more information from the officers as to why they were there, as well as obtain their names and shield numbers. However, the officers did not provide any information. As such, and not wanting to assume that these officers were there for his best interest, § 87(2)(b) called 911 to report what was going on and that a supervisor or lieutenant come to his location and confirm these were police officers on the other side of his door. (Transcript *Id.*). § 87(2)(b) testified that the reason he did not believe that these were police officers was because they did not identify themselves as police officers, or state that they were the police, nor did they state any reason for being there. § 87(2)(b) was also concerned that he did not know how these officers got into the house, and why they were specifically banging on his bedroom door, and not on any of his housemates' doors as well. He stated that his bedroom door did not have a peep hole so he could not confirm if indeed they were the police. (Transcript 23). § 87(2)(b) stated that upon the 911 operator investigating and subsequently confirming that they were police officers, said officers then began to tell him their purpose for being there. (Transcript 25). § 87(2)(b) testified that he asked these officers for their badge numbers approximately five times, but they never gave him that information. He stated the officers began asking him about what happened between himself and one of his housemates, to which he responded that he did not know what they were talking about, all while still on the phone with the 911 operator. (Transcript 26). § 87(2)(b) testified that the 911 operator told to him that she was in communication with the officers at his door, and that a supervisor was on their way to his location. He stated that as he was speaking to the 911 operator, the officers stated that they have to punch a hole in the door, to which § 87(2)(b) stated he told the 911 operator that he was going to stay in the corner as far away from the door so as not to get injured from the blade that was cutting into his door. (Transcript 27). § 87(2)(b) testified that the 911 operator told him that he would eventually have to open the door and find out what the police are there for. He then opened the door and was immediately bum rushed by three officers and arrested. (Transcript 28). § 87(2)(b) testified that during the entire period from first hearing the banging on his door through the time he was on the phone with 911 to the very end, the police officers on the other side of the door never stated to him that they were there to arrest him. He also stated that the 911 operator never informed him that the officers were there to arrest him. (Transcript 29). § 87(2)(b) testified that he told the 911 operator that he is a Jehovah's Witness and did not have any weapons. § 87(2)(b) also testified that when he opened the door to his room, which opens into the room, that his entire body was inside the room. (Transcript 30). § 87(2)(b) stated that upon opening the door to his bedroom he never crossed over the threshold of his room into the common hallway. He also stated that the officers never asked for permission to come into his room, nor did he consent to the officers entering his room. (Transcript 31).

On cross examination, § 87(2)(b) testified that he asked the police officers if they had warrant and they indicated that they did not have any warrant. He stated that he asked the 911 operators to

get a lieutenant to the scene to tell the officers to go away. (Transcript 33). § 87(2)(b) testified that before opening the door he stated out loud that he was opening the door, and that he had the 911 operator on the line, and she knows he is opening the door. § 87(2)(b) also stated that he said the 911 operator was going to be listening to what happens, and that that he is Jehovah's witness and that he was not armed. (Transcript 42). § 87(2)(b) stated he was not close to the door when the officers ran into his room and handcuffed him. (Transcript 43).

§ 87(2)(b) in response to the Court's inquiries, testified that once he was on the phone with the 911 operator, he was not able to tell if there was more than one set of police officers who were knocking on his door during the course of the herein incident. He stated that it was a consistent loud banging on his door which is less than two inches wide. (Transcript 48). § 87(2)(b) testified that the room he rented was on the second floor of a private house that he shared, and everyone locked their own doors. (Transcript *Id.*).

In Exhibits 2 and 3, § 87(2)(b) is heard telling the 911 operator that he is not opening the door and talking to the officers as they did not have a warrant. A response is heard back from one of the officers asking § 87(2)(b) how he could talk to a supervisor if he cannot talk with said officer at the door. (Exhibit 3, P9). § 87(2)(b) then tells the officers that he is on the phone with 911 and the operator has informed him that a lieutenant or sergeant is on the way, and then asks the officers to please step away from the door and to leave the premises. (Exhibit 3, P12). In response, the officers acknowledge to § 87(2)(b) that they are aware their supervisor is on the way to the premises. (Exhibit 3, *Id.*). The officers then tell § 87(2)(b) that they are going to break the door as they just want to talk to him. (Exhibit 3, P19). § 87(2)(b) is then heard telling the 911 operator that he is a Jehovah's Witness and as such, does not have any weapons. § 87(2)(b) also informs the 911 operator that he is not injured. (Exhibit 3, P20). The officers then state to § 87(2)(b) that based on what § 87(2)(b) told them, they do not need a *search* warrant. (Exhibit 3, P26). Upon the officers making the hole in his door, § 87(2)(b) is heard asking the 911 operator why they had to break his door when they could have waited for the supervisor who was on their way to the premises. (Exhibit 3, P29). § 87(2)(b) asks the 911 operator if the officers are there to arrest him to which she replies that they are not there to arrest him. (Exhibit 3, P37). Based on the 911 operator's request to talk with the officers, § 87(2)(b) is heard telling them that he does not know what happened to § 87(2)(b) and goes on to explain what he was doing that morning. He tells the officers that he had his religious Zoom meeting and that after the meeting he got tired because he was ill and on antibiotics. As such he laid down to rest and then one -half hour later, they came banging on his door. (Exhibit 3, P40). After cutting the hole in his door, the officers are heard asking § 87(2)(b) why he doesn't come out and that they broke the door so he should give them his hand. (Exhibit 3, P43).

In Exhibit 4, Police Officer Hackeling says "§ 87(2)(b) NYPD, open up." There is no response and PO Hackeling repeats himself and knocks on the door several times. (Exhibit 4 at 4:20). PO Hackeling is then seen explaining over the phone that there was not enough to go in and get § 87(2)(b). As such they will take § 87(2)(b) assault complaint first and arrest § 87(2)(b) eventually. (Exhibit 4 at 9:45).

In Exhibit 5, Respondent Fechtman activates his body-worn camera and Respondents are seen standing outside of § 87(2)(b) room for approximately one minute, with Respondent O'Hagan standing right in front of the door. The door then opens, and the footage shows the door opening to the inside with § 87(2)(b) standing right behind and next to it. Respondents rush in and place § 87(2)(b) in custody. Respondents are seen lifting the mattress of § 87(2)(b) bed

and looking underneath it. After placing it back down, Respondents then lift it again and shine a flashlight onto the bed, then drop it back down again. Both Respondents then lift the entire bedframe then drop it. Respondent Fechtmann is then seen shining his flashlight inside § 87(2)(b) closet and move around the coats hanging inside. He then moves a bag on the closet floor, and then shines the flashlight into the closet again. Respondent Fechtmann touches § 87(2)(b) jackets and shines the flashlight on them. Both Respondents are then seen walking over to § 87(2)(b) dresser and Respondent Fechtmann lifts and moves several bags and clothing articles near the dresser, and then exit the room. (Exhibit 5 at 0:01 – 4:45).

SUMMARY OF RESPONDENT O'HAGAN'S TESTIMONY

On his direct examination, Respondent O'Hagan testified that after a failed attempt to secure § 87(2)(b) door, the officers tried to get him to come talk to them at the door and have him step out voluntarily, but he was on his cell phone talking. (Transcript 62). Respondent O'Hagan stated that once he made the hole in § 87(2)(b) door, he observed him in his room holding a cell phone. (Transcript 63). Respondent O'Hagan testified that once § 87(2)(b) opened the door the decision was made to go in and place him in custody. (Transcript 66). Respondent O'Hagan stated that they conducted a safety sweep for any potential human body that could be hiding inside, as per their training. (Transcript 67).

On cross-examination, Respondent testified that he just finished his ESU training approximately ten days before the herein incident. He stated that during the time between graduating from the ESU program and the herein incident, he did not have many experiences where he had to use said ESU training. Respondent O'Hagan testified that the herein incident was one of the first experiences where he used his ESU training. (Transcript 69). Respondent O'Hagan admitted that despite being equipped with his body-worn camera, he did not turn it on. Respondent O'Hagan stated that it was his understanding that he was to activate his camera only if they were actually going to enter § 87(2)(b) room. Respondent O'Hagan specified that the team would need to make a determination that they will be entering the room before activating their body-worn cameras (Transcript 70). Respondent O'Hagan testified that Respondent Fechtmann activated his body-worn camera once they were inside § 87(2)(b) room, and did not activate it outside of the room. Upon seeing Respondent Fechtmann's body-worn camera footage, Respondent O'Hagan admitted that Respondent Fechtmann had his body-worn camera on before entering § 87(2)(b) room. (Transcript 71). Respondent O'Hagan testified that there was no supervisor present at the time they made the hole in § 87(2)(b) door, nor when they decided to enter the room. Respondent O'Hagan stated that although there was a sergeant from the 45th Precinct no one gave them the order to put a hole in § 87(2)(b) door or to enter his room without a warrant. (Transcript 73). Respondent O'Hagan admitted that he made his own independent decision to go inside § 87(2)(b) room. (Transcript 74). Respondent stated that the only reason he went inside § 87(2)(b) room was for the safety of his team. Respondent O'Hagan was then confronted with his prior statement to CCRB that the only reason he went into § 87(2)(b) room was because he felt he had probable cause to arrest him.³ (Transcript 76). Respondent O'Hagan testified that when they arrived at the scene, they spoke to the police officers who were there at the premises for a while before the Respondents arrived. (Transcript 77). Respondent O'Hagan stated that the other

³ Respondent O'Hagan's prior statement was read from a certified copy of the transcript of his audio interview with CCRB

officers informed him that they made their attempts to get him out of his room and made no attempts to break the door down. Respondent O'Hagan also stated that the other officers and the sergeant present informed him that § 87(2)(b) was alone in his room and that there were no other individuals in his room with him. (Transcript 78). Respondent O'Hagan testified that he never spoke to § 87(2)(b). He also stated that none of the other officers or the sergeant present told him that § 87(2)(b) was violent or that he had any weapons. (Transcript 80). Respondent O'Hagan stated that he never told § 87(2)(b) that they were there to arrest him prior to entering his room. He also stated that he was aware that § 87(2)(b) was on his cell phone communicating with the 911 operators the whole time they were present outside his room. (Transcript 83). Respondent O'Hagan testified that he told § 87(2)(b) they did not have a warrant, and in response § 87(2)(b) stated that he does not know what is going on and if they do not have a warrant, he was not going to open the door. (Transcript 84). Respondent O'Hagan testified that it was never communicated to him that there was any urgency to go in and get § 87(2)(b) (Transcript 88). Respondent O'Hagan stated that when the door opened, § 87(2)(b) was just standing inside his room. He stated that § 87(2)(b) did not rush towards them or grab anything to attack them with. Respondent testified that he did not ask § 87(2)(b) nor receive any consent from him to enter his room. (Transcript 91). Respondent O'Hagan testified that the team never discussed what would happen if § 87(2)(b) opened the door unexpectedly. (Transcript 105). Respondent O'Hagan testified that his training did not address this type of situation. He stated that he was trained to use his shield to protect the team. (Transcript 106).

SUMMARY OF RESPONDENT FECHTMANN'S TESTIMONY

On his direct examination, Respondent Fechtmann testified that they were waiting for § 87(2)(b) to voluntarily surrender and at the same time waiting for the supervisor to come and help the team out further and see how they were going to go about remedying the situation. (Transcript 117). Respondent Fechtmann testified with regards to his body-worn camera that when the team would decide to enter § 87(2)(b) room, that's when the body-worn cameras would be activated. Respondent Fechtmann testified that once the body-worn camera is activated it begins to record one minute prior to sound coming on. Respondent Fechtmann then stated that he activated his body-worn camera one minute prior to § 87(2)(b) opening the door. (Transcript 118). Respondent Fechtmann stated that once they entered § 87(2)(b) room and secured him, they conducted a safety sweep, as per their training, to see if anyone else was hiding in the room. (Transcript 122).

On cross examination, Respondent Fechtmann testified that he never received any orders from any supervisor directing him to inside § 87(2)(b) room and arrest him. (Transcript 123). Respondent Fechtmann stated that he was informed that § 87(2)(b) was barricaded in his room, but it was not an emergency situation taking place, or any urgency calling for immediate action. Respondent Fechtmann stated that he did not have any information pertaining to anyone else being in the room with § 87(2)(b) at the time, or that § 87(2)(b) was a risk of danger to himself. (Transcript 125). Respondent Fechtmann was then confronted with his prior statement to CCRB that the reason he went into § 87(2)(b) room was because he felt § 87(2)(b) was considered under arrest and once they have a chance to grab § 87(2)(b) and put him in handcuffs, that's what was done.⁴ (Transcript 125). Respondent Fechtmann testified that prior to cutting the hole in § 87(2)(b) door the team was just trying to hold the door as much as they could, and once their ESU

⁴ Respondent Fechtmann's prior statement was read from a certified copy of the transcript of his audio interview with CCRB

supervisor showed up, they would decide how to proceed from there. (Transcript 126). Respondent Fechtmann stated that he was not given an order by any supervisor to cut the hole into § 87(2)(b) door. (Transcript 127). Respondent Fechtmann testified that he did not have any communications with § 87(2)(b) prior to the door opening. He also stated he never told § 87(2)(b) that they were there to arrest him. (Transcript 130). Respondent Fechtmann testified that he never received any order from any supervisor to arrest § 87(2)(b) if he did not come out of his room voluntarily. (Transcript 132). Respondent Fechtmann testified that when § 87(2)(b) opened his door, his body was completely inside his room and not standing at the threshold of the doorway. (Transcript 133). Respondent Fechtmann stated that the subsequent sweep he conducted of § 87(2)(b) room took over two minutes. (Transcript 135).

**RESPONDENTS O'HAGAN AND FECHTMAN ARE GUILTY OF DAMAGING
§ 87(2)(b) BEDROOM DOOR BY DRILLING A HOLE IN IT WITHOUT
SUFFICIENT LEGAL AUTHORITY**

CCRB disagrees with the Tribunal's finding that it was reasonable for the Respondents to drill a hole into § 87(2)(b) bedroom door. (Draft Decision 9).

The evidence showed that the Respondents were called to the location to apprehend § 87(2)(b). The evidence showed that the reason for calling the Respondents was because they received more extensive training regarding "barricaded perpetrators," which can include gaining their voluntary compliance. When the Respondents arrived at the premises, they spoke with the numerous police officers and a sergeant who were already there so as to get an understanding of the situation. The evidence showed that the Respondents never received any information that § 87(2)(b) was a threat to himself, or that he had any weapons in his room, or that he would use any item as a weapon. The evidence showed that the Respondents were informed that § 87(2)(b) was alone in his room and that there were no other individuals in his room when the Respondents arrived. As such, there was no emergency or exigent circumstances at the time of the Respondents' response. § 87(2)(b) was already in police custody and numerous police officers stood outside § 87(2)(b) room and house, so he did not pose a flight risk. Arguably, if any emergency or exigent circumstances existed, there would have been no reason or purpose in calling ESU, as the numerous police officers who were present before the Respondents' arrival would have had the legal right to enter § 87(2)(b) room without a warrant and execute his arrest. The Respondents knew that § 87(2)(b) lived in a private bedroom of a house with other roommates, and thus was entitled to a reasonable expectation of privacy there.

The Tribunal reasoned that given the Respondent's ESU training in dealing with barricaded individuals, as well as the small size of the hole they drilled into the door, the actions taken by the Respondents were measured and intended to ensure the safety of all parties. (Draft Decision 10). However, the evidence showed that the Respondents were waiting for their supervisor to arrive to instruct them on how to proceed, as per their ESU training. The only thing the Respondents were able to do independent of any supervisor's orders was to slow things down by trying to communicate with § 87(2)(b) and get him to voluntarily open the door and surrender himself. As there were no exigent circumstances at the time, and the Respondents never received any instructions or orders from any supervisor to drill a hole into § 87(2)(b) door, the damage to said door was both gratuitous and unnecessary.

As such, the Respondents are guilty damaging § 87(2)(b) door without legal authority.

RESPONDENT O'HAGAN IS GUILTY ENTERING § 87(2)(b) BEDROOM
WITHOUT SUFFICIENT LEGAL AUTHORITY

CCRB disagrees with the Tribunal's finding that Respondent O'Hagan's warrantless entry into § 87(2)(b) bedroom was justified. (Draft Decision 11).

The Tribunal reasoned that because the § 87(2)(b) did not stay inside the residence with § 87(2)(b) but was outside sitting on the steps when police arrived, it was reasonable for a police officer to conclude that waiting to obtain a warrant before arresting § 87(2)(b) would likely pose a danger to the victim. (Draft Decision 12). The reasoning is flawed as there was no evidence presented at trial as to § 87(2)(b) reason for being outside sitting on the steps, nor to her state of mind at the time of the herein incident. The Tribunal's reason is based only on speculation. The fact that § 87(2)(b) separated herself from § 87(2)(b) and was then surrounded and aided by several police officer, she was no longer in any perceived danger. As such, the police officers had the opportunity to stay with § 87(2)(b) at the premise, or to bring her to the precinct for protection as they get an arrest warrant for § 87(2)(b). As the evidence showed, there were no exigent circumstances or danger to § 87(2)(b) at the time which would have allowed them to make a warrantless entry into § 87(2)(b) bedroom and arrest him.

In addition, the Respondents were not yet called or present at the premises when § 87(2)(b) was found outside sitting on the steps. The evidence showed that neither Respondent asked any of the police officers or sergeant present at the scene if there was an arrest warrant, or if an arrest warrant was going to be provided. As the evidence showed, the Respondents erroneously reasoned that because there was probable cause to arrest § 87(2)(b) they did not need a warrant to enter § 87(2)(b) bedroom.

The Tribunal found that it was reasonable for Respondent O'Hagan to believe that § 87(2)(b) could be armed when he unexpectedly opened the door to his bedroom without any warning, even though Respondent O'Hagan testified that he was never told or informed by any of the police officers and sergeant at the scene that § 87(2)(b) had any weapons, or anything that could be used as a weapon. Hence there was never any reason for Respondent O'Hagan to believe that § 87(2)(b) may have had any weapons. (Draft Decision *Id.*). The Tribunal also found that Respondent O'Hagan urgently needed to enter § 87(2)(b) bedroom without a warrant and arrest him because § 87(2)(b) unexpectedly opened the door without any warning, and Respondent O'Hagan was concerned for his safety and the safety of his teammates. However, the evidence showed that Respondent O'Hagan was aware that § 87(2)(b) was going to open the door to his room. Respondent O'Hagan testified that he heard § 87(2)(b) conversation with the 911 operator, as well as saw § 87(2)(b) on the cell phone talking to the 911 operator once the hole was drilled into the door. Respondent O'Hagan stated that the door to § 87(2)(b) room was paper thin, which is why they could not secure it with any of their tools. Respondent O'Hagan heard § 87(2)(b) ask the 911 operator for a supervisor, because Respondent O'Hagan asked § 87(2)(b) why he was requesting a supervisor and not speaking with them instead. Respondent O'Hagan also heard § 87(2)(b) tell the 911 operator that if the officers did not have a warrant, then he was not going to open the door or speak with them. Given that Respondent O'Hagan was able to hear the specifics

of § 87(2)(b) conversation with the 911 operator, it is more than likely Respondent O'Hagan heard § 87(2)(b) announce to the 911 operator that he was going to open the door to his room.

In addition, both Respondents testified that their body-worn cameras would only be activated when the team decided they were going to enter § 87(2)(b) room to arrest him. Respondent Fechtmann's body-worn camera clearly shows that his camera was activated approximately one minute *before* § 87(2)(b) opened his door. This could only mean the Respondents' heard § 87(2)(b) tell the 911 operator that he was going to open the door to his room, and in anticipation of him opening the door, Respondent Fechtmann activated his body-worn camera. As such, there was never any element of surprise when § 87(2)(b) opened his door. Respondent O'Hagan was ready for § 87(2)(b) to open the door, but was not aware that the door would open from the inside. Once § 87(2)(b) opened the door, Respondent O'Hagan reactively rushed in and arrested § 87(2)(b) even though he knew he did not have a warrant and there were no emergency or exigent circumstances that would allow for the warrantless and nonconsensual entry into § 87(2)(b) room to make the arrest, entry as per Payton v. New York, 445 U.S. 573.

As such, Respondent O'Hagan is guilty of entering § 87(2)(b) bedroom without sufficient legal authority.

RESPONDENTS O'HAGAN AND FECHTMAN ARE GUILTY OF SEARCHING
§ 87(2)(b) **BEDROOM WITHOUT SUFFICIENT LEGAL AUTHORITY**

CCRB disagrees with the Tribunal's finding that the Respondents' search of § 87(2)(b) bedroom was justified. (Draft Decision 14).

With regards to Respondent O'Hagan, given that his entry into § 87(2)(b) room was improper, the related search of § 87(2)(b) bedroom is also improper.

Regarding both Respondents, neither Respondent O'Hagan nor Respondent Fechtmann articulated a belief based on any tangible facts that the area swept in their cursory search of § 87(2)(b) room would pose a danger to any of the officers, nor that any individual or victim was hiding in the room. They stated that the reason for the cursory search was solely because it is a part of their training. As such, their search of § 87(2)(b) bedroom did not qualify under the "protective sweep" exemption upheld by the Fourth Amendment and Maryland v Buie, (494 U.S., 108 L Ed 2d 276, 281 [Feb. 28, 1990]), and thus constitutes misconduct

As such, the Respondents are guilty of searching § 87(2)(b) bedroom without sufficient legal authority.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on Specification 1, Specification 2, and Specification 3 for Detective John O'Hagan, and CCRB recommends the penalty of forfeiture of TWENTY (20) vacation days.

With regards to Detective Brian Fechtmann, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on Specification 1 and Specification 2, and CCRB recommends the penalty of forfeiture of TWENTY (20) vacation days.

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Respectfully submitted,

Fredy H. Kaplan

Fredy H. Kaplan

Prosecutor

Administrative Prosecution Unit

Civilian Complaint Review Board

Cc: Marissa Gillespie, Esq.